

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index #
Date of filing:

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ASUNCION BAUTISTA OLGUIN,

Plaintiff designates Bronx
County as the place of trial

Plaintiff,

Basis of the venue is the Locus
of Occurrence

-against-

THE CITY OF NEW YORK, POLICE OFFICER DILMA
MARTE, POLICE SERGEANT MICHAEL WILLIAMS
and JOHN AND JANE DOES-Police Officers as yet
unidentified,

SUMMONS

Plaintiff resides at
2271 Morris Avenue, Apt# 1B
Bronx, New York 10453

Defendants.

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County of Bronx

TO THE ABOVE NAMED DEFENDANT:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in the case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Defendant's address:

THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

Plaintiff's attorneys:

RUBENSTEIN & RYNECKI, ESQS.
16 Court Street, Suite 1717
Brooklyn, New York 11241
(718)522-1020

POLICE OFFICER DILMA MARTE
Tax ID # 955129
c/o New York City Police Department- 46th
Precinct
2120 Ryer Avenue
Bronx, New York 10457

POLICE SERGEANT MICHAEL WILLIAMS
Tax ID # 927674
c/o New York City Police Department- 46th
Precinct
2120 Ryer Avenue
Bronx, New York 10457

Dated: Brooklyn, New York
May 10, 2018

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX-----X
ASUNCION BAUTISTA OLGUIN,

Index No.:

Plaintiff,

COMPLAINT

-against-

THE CITY OF NEW YORK, POLICE OFFICER DILMA
MARTE, POLICE SERGEANT MICHAEL WILLIAMS
and JOHN AND JANE DOES-Police Officers as yet
unidentified,

Defendants.

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Plaintiff, by his attorneys, RUBENSTEIN & RYNECKI, ESQS., complaining of the defendants herein, upon information and belief, respectfully shows to this Court, and alleges as follows:

THE PARTIES AND FACTUAL ALLEGATIONS

1. That at all times hereinafter mentioned, plaintiff was and still is a resident of the County of Bronx, City and State of New York.
2. That all times hereinafter mentioned, the defendant, THE CITY OF NEW YORK, was and still is a municipal corporation, duly organized and existing pursuant to the laws of the State of New York.
3. That the defendant, THE CITY OF NEW YORK, maintains a police force known as the NEW YORK CITY POLICE DEPARTMENT.
4. That prior hereto on August 29, 2017, and within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with plaintiff's demands for adjustment or payment thereof, was served and that thereafter the CITY OF NEW YORK refused or neglected for more than (30) days and up to the commencement of this action to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.

5. That on October 19, 2017, pursuant to the General Municipal Law, a Statutory 50-H hearing of plaintiff was held.

6. That on July 5, 2017, and at all times hereinafter mentioned and upon information and belief, the defendant, THE CITY OF NEW YORK, employed POLICE OFFICER DILMA MARTE, POLICE SERGEANT MICHAEL WILLIAMS and JOHN AND JANE DOES-Police Officers as yet unidentified, as agents, servants and/or employees.

7. That on July 5, 2017, and at all times hereinafter mentioned and upon information and belief, the plaintiff, ASUNCION BAUTISTA OLGUIN, was lawfully present at or about the premises known as 2265 Morris Avenue, in the County of Bronx, City and State of New York.

8. That on July 5, 2017, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER DILMA MARTE, POLICE SERGEANT MICHAEL WILLIAMS and JOHN AND JANE DOES-Police Officers as yet unidentified, who were acting within the scope of their employment with the defendant, THE CITY OF NEW YORK, at the aforesaid premises.

9. That on July 5, 2017, and at all times hereinafter mentioned and upon information and belief, the defendants, POLICE OFFICER DILMA MARTE, POLICE SERGEANT MICHAEL WILLIAMS and JOHN AND JANE DOES-Police Officers as yet unidentified, during and in their course of their employment as New York City Police Officers, used and discharged their service weapons.

10. That on July 5, 2017, and at all times hereinafter mentioned and upon information and belief, the defendants, POLICE OFFICER DILMA MARTE, POLICE SERGEANT MICHAEL WILLIAMS and JOHN AND JANE DOES-Police Officers as yet unidentified, who discharged their service weapons were acting within the scope of their employment with the defendant, THE CITY OF NEW YORK.

11. That on July 5, 2017, and at all times hereinafter mentioned, the use and discharge of their service weapons by defendants, POLICE OFFICER DILMA MARTE, POLICE SERGEANT MICHAEL WILLIAMS and JOHN AND JANE DOES-Police Officers as yet

unidentified, was done in a negligent, reckless and careless manner.

12. That the action of the defendants as herein-above described was outside the bounds of how a reasonably prudent police officer would/should have acted under the circumstances that they were faced with.

13. That on July 5, 2017, and at all times hereinafter mentioned and upon information and belief, due to the negligent discharge of their service weapons, the plaintiff, ASUNCION BAUTISTA OLGUIN, was caused to be struck by a bullet fired by the defendants, POLICE OFFICER DILMA MARTE, POLICE SERGEANT MICHAEL WILLIAMS and JOHN AND JANE DOES-Police Officers as yet unidentified, within the scope of their employment with the defendant, THE CITY OF NEW YORK.

14. That on July 5, 2017, and at all times hereinafter mentioned and upon information and belief, the ASUNCION BAUTISTA OLGUIN, was caused to be struck by a bullet that was negligently, carelessly and recklessly fired by the defendants, POLICE OFFICER DILMA MARTE and POLICE SERGEANT MICHAEL WILLIAMS, within the scope of their employment with the defendant, THE CITY OF NEW YORK.

15. That on July 5, 2017, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER DILMA MARTE, POLICE SERGEANT MICHAEL WILLIAMS and JOHN AND JANE DOES-Police Officers as yet unidentified, actions were negligent, reckless careless so as to cause the plaintiff, ASUNCION BAUTISTA OLGUIN, to be struck and injured by a bullet from their service weapons.

16. That on July 5, 2017, and at all times hereinafter mentioned and upon information and belief, the actions of the defendants were negligent, reckless and careless to the public at large that was present and the danger of firing their weapons out weighed the threat of the situation therein faced by the defendants.

17. That on July 5, 2017, and at all times hereinafter mentioned and upon information and belief, the defendants, POLICE OFFICER DILMA MARTE, POLICE SERGEANT MICHAEL WILLIAMS and JOHN AND JANE DOES-Police Officers as yet unidentified, were

negligent, reckless and careless and they failed to act as a reasonably prudent police officers would have under similar circumstances.

18. That on July 5, 2017, and at all times hereinafter mentioned and upon information and belief, the shooting of the plaintiff was without probable cause and was a result of the negligent manner in which the defendants, POLICE OFFICER DILMA MARTE, POLICE SERGEANT MICHAEL WILLIAMS and JOHN AND JANE DOES-Police Officers as yet unidentified, were responding to a situation threat existing.

19. The aforementioned shooting was performed knowingly, intentionally and willfully.

20. The aforementioned shooting was performed negligently and recklessly.

21. The aforementioned shooting was performed without reason or provocation.

22. The aforementioned shooting caused serious personal injuries to the plaintiff, ASUNCION BAUTISTA OLGUIN.

23. At no time during the events described above or as the events occurred did the defendants, POLICE OFFICER DILMA MARTE, POLICE SERGEANT MICHAEL WILLIAMS and JOHN AND JANE DOES-Police Officers as yet unidentified, who were acting within the scope of their employment with the defendant, THE CITY OF NEW YORK, have probable cause for the discharge of their firearms at the aforementioned location.

24. The actions of the defendants POLICE OFFICER DILMA MARTE, POLICE SERGEANT MICHAEL WILLIAMS and JOHN AND JANE DOES-Police Officers as yet unidentified, were performed within the scope of their employment and authority for whose acts of the defendant, THE CITY OF NEW YORK, are liable under the doctrine of respondent superior.

25. By reason of said negligent, reckless and careless shooting the plaintiff, ASUNCION BAUTISTA OLGUIN, was caused to suffer severe physical injuries, including pain and suffering; emotional and psychological distress and horror.

**AS AND FOR A FIRST CAUSE OF ACTION FOR ASSAULT
BATTERY AND SHOOTING ON BEHALF OF ASUNCION BAUTISTA OLGUIN**

26. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "25" inclusive with the same force and effect as if more fully set forth at length herein.

27. That on July 5, 2017, and at all times hereinafter mentioned and upon information and belief, the plaintiff, ASUNCION BAUTISTA OLGUIN, was lawfully present at or about the premises known as 2265 Morris Avenue, in the County of Bronx, City and State of New York.

28. That on July 5, 2017, and at all times hereinafter mentioned and upon information and belief, the plaintiff, ASUNCION BAUTISTA OLGUIN, was assaulted, battered and shot at with a gun used by the defendants, POLICE OFFICER DILMA MARTE, POLICE SERGEANT MICHAEL WILLIAMS and JOHN AND JANE DOES-Police Officers as yet unidentified, who were acting within the scope of their employment with the defendant, THE CITY OF NEW YORK, at the aforesaid premises.

29. That on July 5, 2017, and at all times hereinafter mentioned and upon information and belief, the aforementioned assault, battery and shooting was performed knowingly, intentionally and willfully.

30. That on July 5, 2017, and at all times hereinafter mentioned and upon information and belief the defendants, POLICE OFFICER DILMA MARTE, POLICE SERGEANT MICHAEL WILLIAMS and JOHN AND JANE DOES-Police Officers as yet unidentified, who committed the aforementioned assault, battery and shooting upon the plaintiff, ASUNCION BAUTISTA OLGUIN, were acting within the scope of their employment with the defendant, THE CITY OF NEW YORK.

31. That on July 5, 2017, and at all times hereinafter mentioned and upon information and belief, the assault, battery and shooting of the plaintiff was without probable cause against the plaintiff, ASUNCION BAUTISTA OLGUIN.

32. The aforementioned shooting was performed knowingly, intentionally and willfully.

33. The aforementioned shooting was performed negligently and recklessly.

34. The aforementioned shooting was performed without reason or provocation of the plaintiff, ASUNCION BAUTISTA OLGUIN.

35. The aforementioned shooting caused serious personal injuries to the plaintiff, ASUNCION BAUTISTA OLGUIN.

36. By reason of said assault, battery and shooting of the plaintiff was caused to suffer severe and serious injuries in and about diverse parts of the person, and suffered great pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

37. By the reason of the foregoing, the plaintiff, ASUNCION BAUTISTA OLGUIN, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SECOND CAUSE OF ACTION FOR
NEGLIGENCE ON BEHALF OF ASUNCION BAUTISTA OLGUIN**

38. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "37" inclusive with the same force and effect as if more fully set forth at length herein.

39. That said incident and the injuries resulting therefrom were caused solely by the negligence, carelessness, and recklessness of defendant, THE CITY OF NEW YORK, through its agents, servants and/or employees, including but not limited to the defendants, POLICE OFFICER DILMA MARTE, POLICE SERGEANT MICHAEL WILLIAMS and JOHN AND JANE DOES-Police Officers as yet unidentified, both directly and vicariously.

40. The above mentioned occurrence and the results thereof were caused by the negligence of the defendant and/or defendant's servants, agents and/or employees in training, hiring, supervision and retention of police officers/detectives, outrageous conduct, including but not limited to POLICE OFFICER DILMA MARTE, POLICE SERGEANT MICHAEL

WILLIAMS and JOHN AND JANE DOES-Police Officers as yet unidentified; in failing to observe the existing police department protocols for police officers/sergeants, including but not limited to POLICE OFFICER DILMA MARTE, POLICE SERGEANT MICHAEL WILLIAMS and JOHN AND JANE DOES-Police Officers as yet unidentified, designed to govern the use of deadly lethal force causing the serious injuries, both physical and emotional, discrimination arising and resulting out of the assault, battery and shooting of the plaintiff and further, deprived plaintiff's civil rights, privileges and immunities secured under the Constitutions of the United States of America and State of New York; in failing to use care in the performance of police duties as reasonably prudent and careful police would have used in similar circumstances; in hiring and retaining of the defendants, including but not limited to POLICE OFFICER DILMA MARTE, POLICE SERGEANT MICHAEL WILLIAMS and JOHN AND JANE DOES-Police Officers as yet unidentified, who were unfit to serve as police officers/sergeants; failing to properly investigate their background; in failing to properly train and instruct police officers/sergeants, especially regarding the abuse of power while in the field; in failing to give police officers/sergeants proper instructions on the use of force, use of firearms including proper discharge of said weapons; in failing to give police officers/detectives proper training regarding the phenomenon known as "*contagious shooting*" in their training and instruction, more specifically with regards to their training as to the use of firearms in public; improperly supervised police officers/sergeants in the field, including but not limited to POLICE OFFICER DILMA MARTE, POLICE SERGEANT MICHAEL WILLIAMS and JOHN AND JANE DOES-Police Officers as yet unidentified, herein as well as in the staffing, administration and processing of persons suspected of violation of the criminal laws of the State of New York, which allowed the abuse and shooting of the plaintiff, ASUNCION BAUTISTA OLGUIN.

41. That the defendant, THE CITY OF NEW YORK, through its agents, servants and/or employees and the police officers involved, including but not limited to defendants, POLICE OFFICER DILMA MARTE, POLICE SERGEANT MICHAEL WILLIAMS and JOHN AND JANE DOES-Police Officers as yet unidentified, were negligent, reckless and careless in

the assault, battery and shooting of the plaintiff, ASUNCION BAUTISTA OLGUIN.

42. As the result of said negligence, the plaintiff, ASUNCION BAUTISTA OLGUIN, was caused to suffer severe physical injuries and pain and suffering, including pain and suffering; emotional and psychological distress and horror.

43. By the reason of the foregoing, the plaintiff, ASUNCION BAUTISTA OLGUIN, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A THIRD CAUSE OF ACTION FOR NEGLIGENT
HIRING AND RETENTION ON BEHALF OF ASUNCION BAUTISTA OLGUIN**

44. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "43" inclusive with the same force and effect as if more fully set forth at length herein.

45. That the defendant, THE CITY OF NEW YORK, did not exercise reasonable care and diligence in the selection, engagement, employment and training of their police officers, sergeants, agents, servants, and/or employees and were negligent in the hiring, training and retention of the defendants, POLICE OFFICER DILMA MARTE, POLICE SERGEANT MICHAEL WILLIAMS and JOHN AND JANE DOES-Police Officers as yet unidentified, who assaulted, battered, shot and violated the civil rights of the plaintiff, ASUNCION BAUTISTA OLGUIN.

46. That the defendant, THE CITY OF NEW YORK, had prior knowledge of the inappropriate, unlawful, and improper conduct of the defendants, POLICE OFFICER DILMA MARTE, POLICE SERGEANT MICHAEL WILLIAMS and JOHN AND JANE DOES-Police Officers as yet unidentified, and continued to employ them and allowed them to be in contact with the public at large.

47. By the reason of the foregoing, the plaintiff, ASUNCION BAUTISTA OLGUIN, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR INTENTIONAL
AND NEGLIGENT INFLICTION OF EMOTIONAL
DISTRESS ON BEHALF OF ASUNCION BAUTISTA OLGUIN**

48. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "47" inclusive with the same force and effect as if more fully set forth at length herein.

49. That the defendant, THE CITY OF NEW YORK, including but not limited to POLICE OFFICER DILMA MARTE, POLICE SERGEANT MICHAEL WILLIAMS and JOHN AND JANE DOES-Police Officers as yet unidentified, acted intentionally, recklessly and with utter disregard to the consequences of their actions and caused severe emotional distress to the plaintiff through their actions.

50. Said actions exceeded all reasonable bounds of decency, were outrageous and shocking and resulted in severe emotional distress to the plaintiff, ASUNCION BAUTISTA OLGUIN.

51. That as a result of said intentional and negligent acts, the plaintiff, ASUNCION BAUTISTA OLGUIN, become sick, sore, lame and disabled, received severe and serious injuries in and about diverse parts of his person and suffered great physical pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

52. By reason of the foregoing, the plaintiff, ASUNCION BAUTISTA OLGUIN, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FIFTH CAUSE OF ACTION FOR CIVIL
RIGHTS VIOLATION ON BEHALF OF ASUNCION BAUTISTA OLGUIN**

53. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "52" inclusive with the same force and effect as if more fully set forth at length herein.

54. The defendant, THE CITY OF NEW YORK, through policies, practices and customs, directly caused the constitutional violation suffered by plaintiff.

55. The defendant, THE CITY OF NEW YORK, through its police department, has had and still has hiring practices that it knows will lead to the hiring of the police officers, including but not limited to POLICE OFFICER DILMA MARTE, POLICE SERGEANT MICHAEL WILLIAMS and JOHN AND JANE DOES-Police Officers as yet unidentified, lacking the intellectual capacity and moral fortitude to discharge their duties in accordance with the constitution and is indifferent to the consequences.

56. The defendant, THE CITY OF NEW YORK, through its police department, has *de facto quota* policy that encourages unlawful stops, unlawful searches, false arrests, the fabrication of evidence and perjury.

57. The defendant, THE CITY OF NEW YORK, at all relevant times, was, upon information and belief, aware that these individual defendants, including but not limited to POLICE OFFICER DILMA MARTE, POLICE SERGEANT MICHAEL WILLIAMS and JOHN AND JANE DOES-Police Officers as yet unidentified, routinely commit constitutional violations such as those at issue here and has failed to change its policies, practices and customs to stop this behavior.

58. The defendant, THE CITY OF NEW YORK, at all relevant times, was aware that these individual defendants, including but not limited to POLICE OFFICER DILMA MARTE, POLICE SERGEANT MICHAEL WILLIAMS and JOHN AND JANE DOES-Police Officers as yet unidentified, are unfit officers who have previously committed the acts alleged herein and/or have a propensity for unconstitutional conduct.

59. As a direct and proximate result of this unlawful conduct, the plaintiff, ASUNCION BAUTISTA OLGUIN, sustained the damages hereinbefore alleged.

**AS AND FOR A SIXTH CAUSE OF ACTION FOR PUNITIVE DAMAGES
ON BEHALF OF ASUNCION BAUTISTA OLGUIN**

60. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "59" inclusive with the same force and effect as if more fully set forth at

length herein.

61. The actions of the defendants herein-above alleged, were malicious, willful and grossly negligent.

62. That the defendant, THE CITY OF NEW YORK, authorized, permitted and ratified the unlawful and negligent acts of their agents, servants and/or employees, including but not limited to POLICE OFFICER DILMA MARTE, POLICE SERGEANT MICHAEL WILLIAMS and JOHN AND JANE DOES-Police Officers as yet unidentified, herein-above alleged.

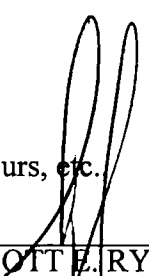
63. By the reason of the foregoing, the plaintiff, ASUNCION BAUTISTA OLGUIN, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

WHEREFORE, plaintiff, ASUNCION BAUTISTA OLGUIN, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **First** Cause of Action; plaintiff, ASUNCION BAUTISTA OLGUIN, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Second** Cause of Action; plaintiff, ASUNCION BAUTISTA OLGUIN, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Third** Cause of Action; plaintiff, ASUNCION BAUTISTA OLGUIN, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fourth** Cause of Action; plaintiff, ASUNCION BAUTISTA OLGUIN, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fifth** Cause of Action; plaintiff, ASUNCION BAUTISTA OLGUIN, demands judgment both compensatory and exemplary in an amount

exceeding the jurisdictional limits of all lower Courts on the **Sixth** Cause of Action; together with attorneys' fees, and the costs and disbursements of this action.

DATED: Brooklyn, New York
May 9, 2018

Yours, etc.



SCOTT E. RYNECKI, ESQ.
RUBENSTEIN & RYNECKI, ESQS.
Attorneys for Plaintiff
ASUNCION BAUTISTA OLGUIN
16 Court Street Suite 1717
Brooklyn, New York 11241
(718) 522-1020
File No.:17AB07-05

ATTORNEY'S VERIFICATION BY AFFIRMATION

SCOTT E. RYNECKI, ESQ. , an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

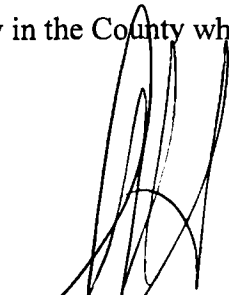
I am a member at RUBENSTEIN & RYNECKI, ESQS., attorneys of record for the Plaintiff/Plaintiffs, I have read the annexed

SUMMONS AND COMPLAINT

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

The reason I make the foregoing affirmation instead of the Plaintiff/Plaintiffs is because the Plaintiff/Plaintiffs is/are not presently in the County wherein the attorneys for the Plaintiff/Plaintiffs maintain their offices.

Dated: Brooklyn, New York
May 9, 2018



SCOTT E. RYNECKI, ESQ.